



File number: 1755

NOTARIAL DEED

Before me, Dr. Martin Gratzl MBL, Civil Law Notary and Certified Court Translator in English and German, practicing at Ravelsbach and having office at Gerichtsgasse 3/1, 3720 Ravelsbach, appeared today in the offices of BRANDL TALOS Rechtsanwälte GmbH, Mariahilfer Straße 116, 1070 Wien, whereto I came upon the request of the parties, the following individuals, who have proved their identities and the correctness of their birth dates by presenting valid photoidentifications, namely: -----

1. **Doktor Harald Reissner**, born on October 27th 1962 (October twenty-seventh nine-teenhundred sixty-two), as Managing Director of **Invictus GmbH**, a private company with limited liability with its registered seat in Siegendorf, and its business address at Industriegebiet 1, 7011 Siegendorf, registered in the commercial register of the regional court Eisenstadt under FN 286666 v, -----
2. **Bernd Reiter**, born on October 15th 1977 (October fifteenth nineteen hundred sev-enty-seven), and **Thomas Reißner**, born on April 12th 1989 (April twelfth nineteen hundred eighty-nine), both as Managing Directors of **Invictus Cable GmbH**, a pri-vate company with limited liability with its registered seat in Siegendorf, and its business address at Industriegebiet 1, 7011 Siegendorf, registered in the commercial register of the regional court Eisenstadt under FN 515573 x and -----
3. **Shivendra Narayan Dwivedi**, born on January 25th 1976 (January twenty-fifth nine-teen hundred seventy-six), C24, Block C, Phase-2, 201305 Noida, Uttar Pradesh, In-dia, as board member with independent power of representation of **Elcomponics Holdings B.V.**, a company with its registered seat in Amsterdam, and its business address at K raaijenhoffstraat 137A, 1018RG Amsterdam, registered in the commer-cial register of the Netherlands Chamber of Commerce under establishment number 000052177890 -----

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The said individuals have a perfect command in the English language and upon their request this notarial deed is drawn up in English pursuant to § 62 (Article sixty-two) Notaries Act. The parties explicitly waive and renounce to attach a translation into the German language of this notarial deed. -----

The parties have for the purpose of notarial affirmation presented to me a private document of today's date, namely a-----

SHAREHOLDERS' AGREEMENT EXECUTED AS A DEED

which is attached to this notarial deed. -----

I have therefore examined and signed this private document in accordance with § 54 (Article fifty-four) Notaries Act as amended. -----

The parties have been instructed about the legal consequences of § 12a (Article 12a) Rental Act ("Mietrechtsgesetz"). They are aware that as a result of the execution of the share purchase and transfer agreement the rent for premises or sites leased by the Company concerned may be increased. -----

The parties declare that the Company does not own any immovable property. -----

Certified Copies of this notarial deed can be handed over in any number to all parties to the contract, as well as their heirs and legal successors, and to the company itself, in each case at the expense of the requesting party. -----

Thereupon, this notarial deed and the said private deed were recorded by me, read out in full to the parties present, entirely approved by them as being fully in accordance with their intentions and subsequently signed by them before me, Civil Law notary and Certified Court Translator.

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**SHAREHOLDERS' AGREEMENT
EXCECUTED AS A DEED**

BETWEEN

**INVICTUS CABLE GMBH
("Company")**

AND

**INVICTUS GMBH
("Invictus")**

AND

**ELCOMPONICS HOLDINGS B.V.
("ESPL BV")**

**DATED
March 24, 2023**

CONTENTS

1. DEFINITIONS AND INTERPRETATION	3
2. COMMENCEMENT AND DURATION.....	4
3. SHARE CAPITAL.....	4
4. RIGHTS, PREFERENCES, PRIVILEGES AND RESTRICTIONS ATTACHED TO THE SHARES	4
5. NON-COMPETE AND NON-SOLICITATION	13
6. TERMINATION	14
7. FORCE MAJEURE.....	15
8. CONFIDENTIALITY	15
9. NOTICES	15
10. MISCELLANEOUS	16
SCHEDULE 1 DEFINITIONS AND INTERPRETATION	18
SCHEDULE 2 DEED OF ADHERENCE	22

This Shareholders' Agreement ("**Agreement**") is executed as a deed on March 24, 2023 ("**Execution Date**"):

BETWEEN

1. **INVICTUS CABLE GMBH**, registered under the laws of Austria, registration no. FN 515573x, with registered office at 7011 Siegendorf, Industriegebiet 1, Austria (the "**Company**") but only with respect to Clauses 1, 2, 4.1, 4.2, 4.3, 4.4, and 6 through 10 and the provisions referred therein;
2. **INVICTUS GMBH**, registered under the laws of Austria, registration no. FN 286666v, with registered office at Industriegebiet 1, 7011 Siegendorf, Austria ("**Invictus**");
3. **ELCOMPONICS HOLDINGS B.V.**, registered under the laws of The Netherlands with identification number 86186868, having its corporate seat in Amsterdam and visiting address at Kraijenhoffstraat 137 A, 1018RG Amsterdam ("**ESPL BV**")

Invictus, ESPL BV and the Company are referred to as a "**Party**" individually and collectively as "**Parties**";

BACKGROUND:

- A. ESPL BV is a wholly owned subsidiary of *Elcomponics Sales Private Limited*. Pursuant to the SPA Invictus has agreed to transfer to ESPL BV a share quota (*Geschäftsanteil*) in the Company of EUR 9,100 representing 26% Ownership Interest. The Parties have agreed to constitute the Company as a 74:26 joint venture.
- B. The fundamental principles of the joint venture are:
 - (1) ESPL BV will be a strategic investor with minority shareholding.
 - (2) The Parties undertake to adhere to globally accepted standards of ethics and fairness in their conduct with each other and other stakeholders to foster a deeper relationship forming the basis for intended joint ventures in the United States and India.
 - (3) The Parties shall proportionately participate in risk/reward arising from business decisions taken after Completion Date.
- C. In keeping with aforesaid, this Agreement sets out terms governing the relationship between Shareholders and matters relating to governance and administration of the Company.

IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1. Definitions

A capitalized term or expression has the meaning given to it in **schedule 1** (*Definitions and Interpretations*).

1.2. Interpretation

The interpretation clause in **schedule 1** (*Definitions and Interpretations*) sets out rules of interpretation for this Agreement.

2. COMMENCEMENT AND DURATION

Other than clause 6.4 (*Survival*) (which shall come into effect on Execution Date and shall survive termination), all other terms of this Agreement shall come into effect on Completion Date and continue unless terminated under clause 6 (*Termination*).

3. SHARE CAPITAL

The Ownership Interest of each Party on Completion Date is:

Shareholder	Share quotas (<i>Geschäftsanteile</i>)	Capital contribution (<i>Stammeinlage</i>)	Ownership Interest
Invictus	1	EUR 25,900	74%
ESPL BV	1	EUR 9,100	26%
Total Share Capital	2	EUR 35,000	100%

4. RIGHTS, PREFERENCES, PRIVILEGES AND RESTRICTIONS ATTACHED TO THE SHARES

4.1. Board and Shareholder Rights:

(a) Composition of the Advisory Board:

The Shareholders shall, as soon as reasonably practicable following the Completion Date, establish an advisory board at the level of the Company. ESPL BV shall have representation on the advisory board of the Company in proportion to ESPL BV's Shareholding such that:

- (i) The advisory board shall consist of no fewer than 2 (two) members;
- (ii) ESPL BV shall have the right to appoint, remove and replace members in proportion to its Ownership Interest. For so long as ESPL BV is a Shareholder it shall have the right to appoint, remove and replace at least 1 (one) member.

(b) Meetings and Quorum:

- (i) The Parties shall convene at least 4 (four) meetings of the advisory board each year;
- (ii) Valid quorum for a meeting of the advisory board shall be at least 2 (two) members, including at least (1) one member appointed by ESPL BV. If the meeting of the advisory board does not constitute a quorum in accordance with the preceding sentence, a new meeting shall be convened with 5 (five) calendar days' notice with the same agenda; that meeting shall have a quorum regardless of the number of members present or represented at the meeting.
- (iii) A written notice of every meeting of the advisory board shall be given to every member, as the case may be, at least 10 (ten) calendar days prior to convening such meetings. An advisory board meeting may be convened with shorter notice if circumstances so warrant, with the prior written consent of at least 1

- (one) Invictus member authorized representative and 1 (one) ESPL BV member authorized representative.
- (iv) The notice for each advisory board meeting shall be accompanied with an agenda along with relevant documents setting out in reasonable detail the business proposed to be transacted at the meeting.
- (v) If permitted by applicable law, the advisory board meetings may be conducted by telephone conference, video conference or any similar means of audio or audio-visual communication.

(c) **Simple Majority:**

Subject to clause 4.2 (*Affirmative Voting Rights*), all decisions of the advisory board shall be determined by a simple majority.

4.2. Affirmative Voting Rights

The matters specified in this clause 4.2 (*Affirmative Voting Rights*) shall require the consent of the Shareholders with (i) a simple majority of votes cast or, as the case may be, if higher, the respective consent quorum provided for by applicable law, including (ii) approval by ESPL BV (the "**Reserved Matters**"). The Reserved Matters shall apply to the Company and, *mutatis mutandis*, to any (future) subsidiaries of the Company. The application of the Reserved Matters to subsidiaries of the Company shall be procured by the implementation of respective provisions into the constitutional documents of such subsidiaries. The Reserved Matters are:

- (a) budget approval for any project or any subsequent change in the approved budget;
- (b) capital measures, including increases and decreases of the share capital or the issuance or agreement to issue any shares to any Person or the creation of any new or amendments of any existing class of shares, securities, other equity instruments or subordinated debt instruments as well as granting special right to existing or new share quotas in the Company;
- (c) dissolution or liquidation;
- (d) incurrence of financial indebtedness or giving of any guarantee or creating any security in excess of EUR 500,000;
- (e) any merger, demerger, hiving off, reorganization or other measures leading to a change in the corporate structure, and the sale, lease or other disposition of all or substantially all of the Company's Assets;
- (f) the investment or participation in any other legal entity or business;
- (g) any capital expenditure decision involving a cumulative yearly expenditure in excess of EUR 500,000;

- (h) acceptance of any material contract which may involve a cumulative yearly expenditure in excess of EUR500,000;
- (i) approval of remuneration of senior executives;
- (j) appointment or change in statutory auditors (the Parties may agree upon a list of auditors to choose from);
- (k) approval of financial statements;
- (l) amendments of the articles of association;
- (m) any change of the Company's legal form or seat;
- (n) all measures and transactions of the Company with its (direct or indirect) shareholders or their Relatives and/or with companies in which (direct or indirect) shareholders or their Relatives are holding a direct or indirect interest;
- (o) all measures and transactions of the Company with members of the management board or their Relatives and/or companies, in which a member of the management board or his Relatives has/have a significant economic interest;
- (p) any contract to be entered into that is not an arms' length contract or commitment, or any exclusivity, non-compete or other restrictive covenants, or any contract that falls outside the ordinary course of business, exceeding EUR250,000 per transaction;
- (q) giving of any consent or waiver under any agreement, involving the assumption of obligations in excess of EUR250,000 in any given financial year; and
- (r) any proposal for change or appointment of any key person (i.e., person who is vital to the operations).

4.3. Dividend Rights:

- (a) The Parties undertake to distribute dividend in respect of each financial year in keeping with the following policy:
 - i. 75% of the Company's free cash flows (on an aggregate basis) shall be available for distribution;
 - ii. unutilized accumulated cash surplus of the Company (accumulated on a year-on-year basis) exceeding EUR1,000,000 (or such amounts as mutually agreed between the Parties) shall be available for distribution; and
 - iii. the aforesaid is subject always to the Company having sufficient distributable reserves.

- (b) The Company shall (to the extent permitted by applicable law) pay dividends as soon as reasonably practicable after the date on which the financial statements of the Company for a financial year were approved by the Shareholders.
- (c) Unless otherwise unanimously agreed by Shareholders, all dividends or other distributions shall be paid to the Shareholders in proportion to their respective Ownership Interests.
- (d) The Shareholders shall be entitled – following a mutual agreement between the Shareholders and to the extent permitted by law and the liquidity situation of the Company – to receive on-account payments of dividends to one or more Shareholders prior to the approval of the financial statements in the form of loans, which shall be settled with the actual dividend distributions.

4.4. Information and Inspection Rights

The Company shall deliver to the Shareholders:

- (a) the annual financial statements within 120 (one hundred and twenty) days after the end of each financial year;
- (b) the quarterly financial statements within 60 (sixty) days after the end of each quarter;
- (c) within 30 (thirty) days of a request made to the Company:
 - (i) information on related party transactions, and
 - (ii) minutes of meetings of the advisory board and Shareholders.

Further, the Company shall deliver to ESPL BV without undue delay, any information in relation to the business of the Company or any of its subsidiaries which ESPL BV, acting reasonably, requests. In addition, ESPL BV, its authorised representatives and its advisors who are subject to professional confidentiality obligations, shall be allowed access to examine the books and records of the Company and to discuss the Company's affairs with its managing directors, provided that such rights may be exercised by ESPL BV only at reasonable times and upon giving reasonable advance notice to the Company. The Shareholders' statutory information right pursuant to § 22 GmbH shall remain unaffected.

4.5. Anti-Dilution Rights:

In the event that new securities in relation to the Company are issued to a third party (“Offeree”) and the price per security paid by the Offeree is proposed to be less than purchase price paid by ESPL BV in proportion to its Ownership Interest, prior to issuance of any securities to the Offeree, ESPL BV shall be entitled, at its option, to be issued such number of securities at nil consideration (pursuant to a bonus issue or rights issue or such other method and mechanism to be undertaken by the Company) such that ESPL BV's Ownership Interest does not fall below 26%.

IF:

there is:

- (i) any corporate reorganisation of the Company; or
- (ii) a merger or consolidation of the Company with or into another company in which the Company is not the surviving entity, or a reverse merger, or similar transaction, in which the Company is the surviving entity but the Shares immediately prior to the merger are converted into other property, whether in the form of securities, cash, or otherwise, which results in change of Control; or
- (iii) a sale or transfer of all or substantially all of the Company's Assets to any other Person,

THEN:

subject to applicable law, ESPL BV shall have the right to receive the number of shares or other securities, or property offered to the Company's Shareholders, such that ESPL BV's Ownership Interest does not fall below 26%.

The Shareholders shall take all measures that are necessary or useful to give effect to the provisions of this clause 4.5 and, in particular, to ensure that ESPL BV may subscribe for the Shares attributable to it as per this clause (including, but not limited to, adopting the required shareholder resolutions and waiving their subscription rights).

4.6. Exit Rights

- (a) **Lock-in:** Section 9 of the Restated Articles contains certain transfer restrictions and restrictions on encumbrances with respect to Shares. Except with the prior written consent of the non-transferring Shareholder (which consent may be given or withheld at the sole discretion of the non-transferring Shareholder), a transferring Shareholder shall be locked-in for a period of 3 (three) years ("**Lock-in Period**") from the Completion Date. The Shareholders shall not sell their Shares in favour of any third party during the Lock-in Period, except for Permitted Transfers. The Shareholders shall be obliged to approve any transfer of Shares following expiry of the Lock-in Period, provided that the provisions of this Agreement and the Articles are complied with.
- (b) In case of any transfer of Shares to a third party (including Permitted Transfers) in accordance with the provisions of this Agreement and the Articles, the transferring Shareholder undertakes to procure that such transfer shall be conditional upon the transferee's valid accession to, and declaration to be bound by all provisions of, this Agreement with the rights and duties which correspond to those of the respective transferor by executing a Deed of Adherence; the same shall apply *mutatis mutandis* in connection with the issuance of Shares to third party investors in the course of a capital increase of the Company.
- (c) **Permitted Transfers:** The Parties may allow *inter se* transfer amongst Affiliates ("**Permitted Transfers**"). The restrictions on transfer including clause 4.7 (*Share*

Transfer Rights and Restrictions) shall not apply to transfer to an Affiliate. Transfer to an Affiliate is subject to:

- (i) such transfer not being impermissible under obligations (regulatory, contractual or otherwise) undertaken by the Shareholders;
 - (ii) the Affiliate executing a Deed of Adherence;
 - (iii) such Affiliate having demonstrated to the non-transferring Shareholder that it is of no lesser financial standing than the transferring Shareholder and is manifestly capable of performing its obligations under this Agreement to the reasonable satisfaction of the non-transferring Shareholder or the transferring Shareholder has guaranteed the obligations under this Agreement assumed by the Affiliate; and
 - (iv) an obligation to re-transfer to the transferring Shareholder or any other Affiliate of such Shareholder upon such Affiliate ceasing to be an Affiliate.
- (d) **Put Option:**
- (i) Upon expiry of the Lock-in Period ESPL; or
 - (ii) if at any time, any historic liability, not disclosed in the Company's financial statements as until Completion Date, exceeds EUR250,000,

ESPL BV shall have the right (but not the obligation) to exit the Company (“**Exit Right**”) by selling, transferring and assigning all the Shares held by it to Invictus on the following terms and conditions. Invictus hereby irrevocably grants ESPL BV an option to sell, transfer and assign all Shares held by ESPL BV to Invictus at a purchase price equal to an EBITDA multiple of 7x where the EBITDA is determined as an average of the Company's EBITDA for the 2 (two) financial years preceding the exercise of the Exit Right. It is intended that the sales that the Company currently generates with American companies will be transferred to and subsequently be carried out through the intended joint venture in the United States following establishment of such joint venture. Therefore, any revenues generated by the Company with US customers during the 2 (two) financial years preceding the exercise of the Exit Right shall not be included in the calculation of the Company's EBITDA, except for (i) any revenues with new US customers that are generated by the Company after the transfer of the Company's sales to the joint venture as set out in the preceding sentence and (ii) revenues that are billed to US entities but are attributable to international customers of the Company and, therefore, not covered by the purpose of the US joint venture (with the effect that the revenues pursuant to the foregoing items (i) and (ii) shall be included in the calculation of the Company's EBITDA).

For the avoidance of doubt, in the event that the US joint venture should cease doing business and the sales generated by the joint venture with US customers are subsequently transferred to and carried out through the Company, such revenues shall not be taken into account in the calculation of the Company's EBITDA.

Equally, upon exercise of the Exit Right, any reduction in the Company's EBITDA attributed to a “transfer” by the Company of any of its present Non-US business prior to the exercise of the Exit Right shall be disregarded for calculation of the

Company' s EBITDA ” . In such events, Company' s EBIDTA shall be calculated on the basis as if the revenues of the “ transferred ” business continues to be recognised in books of the Company, such revenues being the last recorded revenues for the immediately preceding 12-month period prior to the date of the transfer.

Clarification: “ Transfer ” in relation to such a business means a transfer / divestment / reorganisation of the business, on a going concern basis, to or with an Affiliate or joint venture and where the effect of the transaction requires that revenues of the business can no longer be recognised in the books of the Company.

ESPL BV is entitled to exercise the Exit Right in its sole discretion at any time by delivering to Invictus and the Company a written notice of its desire to exercise the Exit Right (the “ **Exit Notice** ”). The legal transfer of the Shares held by ESPL BV in the proper form as required under Austrian law (notarial deed) shall be effected against payment of the purchase price within 30 (thirty) days after delivery of the Exit Notice by ESPL BV.

4.7. Share Transfer Rights and Restrictions

(a) *Right of First Refusal*

- (i) Post expiry of the Lock-in Period, in the event any Shareholder of the Company (“ **Selling Shareholder** ”) intends to sell all or part of its Shares (“ **Offered Shares** ”) to a third party (“ **Proposed Transferee** ”), then the non-selling Shareholder shall have the first right, but not an obligation, to acquire the Offered Shares on the conditions set out below (“ **Right of First Refusal** ”).
- (ii) The Selling Shareholder shall immediately issue a notice in writing (“ **Offer Notice** ”) of the proposed transfer to the non-Selling Shareholders on receipt of offer from the Proposed Transferee. The Offer Notice shall include the price per Offered Share (“ **Offer Price** ”), the identity of the Proposed Transferee (and if the Proposed Transferee is a corporate entity, the identity of the Controlling shareholders of the Proposed Transferee), the proportion of the Offered Shares which the non-Selling Shareholder is entitled to purchase (calculated *pro rata* to their Ownership Interest), payment mechanism, and other conditions of sale, along with a copy of the purchase agreement, if available.
- (iii) Upon receiving the Offer Notice, the non-Selling Shareholder shall have the right but not the obligation, either by itself or by nominating an Affiliate, to acquire the Offered Shares at the Offer Price by providing written notice to the Selling Shareholder (“ **Acceptance Notice** ”) within 30 (thirty) days from the date of receipt of the Offer Notice by the non-Selling Shareholder (the “ **Acceptance Notice Period** ”).
- (iv) Upon issuance of an Acceptance Notice, the non-Selling Shareholder shall have a right to purchase, and the Selling Shareholder shall have an obligation to transfer to the non-Selling Shareholder (or its nominee, as the case may be), the Offered Shares as specified in the Acceptance Notice within 30 (thirty) days from the date of expiry of the Acceptance Notice Period.

- (v) If the non-Selling Shareholders do not offer to purchase all the Offered Shares, then, subject to the Tag Along Right of ESPL, the Selling Shareholder shall be free to transfer the Offered Shares to the Proposed Transferee on terms and conditions not more favorable (for such Proposed Transferee) than those stated in the Offer Notice and at a price not less than the Offer Price, within a period of 45 (forty-five) days after the expiration of the Acceptance Notice Period.
- (vi) If such transfer does not occur within the aforesaid period, the Offered Shares shall again be subject to the restrictions contained in this paragraph (a). If the Offered Shares are acquired by the Proposed Transferee, such Proposed Transferee shall, prior to acquiring the Offered Shares, execute a Deed of Adherence and the Selling Shareholder shall furnish adequate documentation evidencing completion of sale of the Offered Shares at the price and on the terms no more favourable than those mentioned in the Offer Notice to the Proposed Transferee before recording of such transfer by the board.

(b) ***ESPL's Tag Along Right:***

- (i) Simultaneously with the **Offer Notice**, Invictus shall provide written notice ("**Tag Offer Notice**") to ESPL BV.
- (ii) The Tag Offer Notice shall offer a tag along right in the manner described in this paragraph (b), in relation to such number of Offered Shares which are not purchased under paragraph (a) ("**Offered Tag Shares**"). The Tag Offer Notice shall include the Offer Price, the identity of the Proposed Transferee (and if the Proposed Transferee is a corporate entity, the identity of the Controlling shareholders of the Proposed Transferee), the number of Offered Tag Shares, payment mechanism and other conditions of sale, along with a copy of the purchase agreement, if available.
- (iii) Alternatively to its Right of First Refusal, ESPL BV shall have the right to require Invictus, by notice in writing ("**Tag Along Notice**") within 30 (thirty) days of the receipt of the Tag Offer Notice by ESPL BV ("**Tag Along Period**"), to arrange for transfer of Shares held by ESPL BV ("**Tag Along Shares**"), along with the Offered Tag Shares on the same terms and conditions as set out in the Tag Offer Notice ("**Tag-Along Right**").
- (iv) If there is a change of Control arising from the proposed transfer of the Offered Shares to the Proposed Transferee as envisaged in the Tag Offer Notice, ESPL BV shall be entitled to tag up to all its Shares for sale to the Proposed Transferee along with the sale of the Offered Tag Shares.
- (v) In the event ESPL BV exercises its Tag Along Right, the sale of Offered Tag Shares (or any portion thereof) by Invictus to the Proposed Transferee shall be subject to the Proposed Transferee also simultaneously acquiring the Tag Along Shares on terms no less favorable than those offered by it to the selling Invictus.
- (vi) If, however, in the event of an exercise of Tag Along Right, the Proposed Transferee is unwilling to acquire all the Offered Tag Shares and the Tag Along Shares, Invictus shall promptly notify ESPL, in writing, notifying unwillingness of the Proposed Transferee, and allocate the maximum number of Shares which

such Proposed Transferee is willing to purchase among the Offered Tag Shares and the Tag Along Shares *pro-rata*, in the ratio of the Ownership Interest of Invictus and ESPL, and complete such transfer.

- (vii) If the Offered Tag Shares (and the Tag Along Shares, if applicable) are acquired by the Proposed Transferee (other than an existing Shareholder), such Proposed Transferee shall, prior to acquiring the Offered Tag Shares (and the Tag Along Shares, if applicable), duly execute a Deed of Adherence and deliver it to the Company. It is clarified that the Shares held by such Proposed Transferee (but not including ESPL) shall be subject to the transfer restrictions and ESPL's rights under this clause.

(c) ***Invictus's Drag Along Right:***

- (i) Post expiry of the Lock-in Period and upon completion of the Acceptance Notice Period, Invictus shall have a right to exit the Company by selling all its Shares to the Proposed Transferee and may provide a written notice ("**Drag Notice**") to ESPL BV if it has not exercised its Right of First Refusal under paragraph (a).
- (ii) As part of such a sale, Invictus shall have the right to call upon ESPL BV and ESPL BV shall be under an obligation to sell up to its entire Ownership Interest ("**Drag Along Shares**"). The sale shall occur within 30 (thirty) days of the Drag Notice, at the same price and on the same terms as may be applicable to Invictus in such sale to the Proposed Transferee, provided however that the purchase value for the sale of the ESPL's Ownership Interest is not less than an EBITDA multiple of 7x ("**Drag Along Right**").
- (iii) The Drag Notice shall include the Offer Price, the identity of the Proposed Transferee (and if the Proposed Transferee is a corporate entity, the identity of the Controlling shareholders of the Proposed Transferee), the number of Offered Shares that are not purchased under paragraph (a) ("**Offered Drag Shares**"), payment mechanism and other conditions of sale, along with a copy of the purchase agreement, if available.
- (iv) In the event Invictus exercises its Drag Along Right, the sale of Offered Drag Shares (or any portion thereof) by Invictus to the Proposed Transferee shall be subject to the Proposed Transferee also simultaneously acquiring the Drag Along Shares on terms no less favorable than those offered by it to Invictus.
- (v) If, however, in the event of an exercise of Drag-Along Right, the Proposed Transferee is unwilling to acquire all the Offered Drag Shares and the Drag Along Shares, Invictus shall promptly notify ESPL, in writing, such unwillingness of the Proposed Transferee, and allocate the maximum number of shares which such Proposed Transferee is willing to purchase among the Offered Drag Shares and the Drag Along Shares *pro-rata*, in the ratio of the Ownership Interest of Invictus and ESPL BV and complete such transfer.
- (vi) If the Offered Drag Shares (and the Drag Along Shares, if applicable) are acquired by the Proposed Transferee (other than an existing Shareholder), and if ESPL BV continue to be a Shareholder such Proposed Transferee shall, prior to acquiring the Offered Drag Shares (and the Drag Along Shares, if applicable),

duly execute a Deed of Adherence and deliver it to the Company. It is clarified that the Shares held by such Proposed Transferee (but not including ESPL) shall be subject to the transfer restrictions and ESPL's rights under this clause.

5. NON-COMPETE AND NON-SOLICITATION

- 5.1.** The Shareholders shall be subject to the non-compete and non-solicitation obligations set out in this clause during the term of this Agreement and for a period of 3 (three) years from the latest date they (and/or one of their Affiliates) cease to be a Shareholder in the Company and/or shareholder in the joint ventures in India and the US.
- 5.2.** The Shareholders shall not (and shall procure that their Affiliates shall not) directly or indirectly, either by themselves or in association with or through any Person or entity other than through the Company, ESPL BV and / or the joint ventures in Indian and US, in any manner whatsoever:
- (a) commence, establish, invest in, carry on, engage in, conduct, own, manage, operate, join or have Control in any business entity which is carrying on a Competing Business; or
 - (b) for itself or as an agent and/or employee of any Person, canvass or solicit for any Competing Business; or
 - (c) utilise the intellectual property rights forming a part of the Business and other derivatives thereof;
 - (d) solicit any customer, distributor, supplier or dealer for the purpose of any business including any Competing Business; or
 - (e) solicit, canvass or entice away any staff and/or employee who is employed in any managerial, supervisory, technical, sales or administrative capacity from the Company.
- 5.3.** The Shareholders hereby agree and affirm that any breach of their obligations under this clause by either of them or their Affiliates shall:
- (a) cause considerable damage and irreparable Loss to the Company and the other Shareholders which, the Parties agree, are not capable of being remedied by damages. Accordingly, the Parties hereby agree that in such event, the Company and the other Shareholders shall therefore be entitled to obtain injunctive relief to specifically enforce this Agreement, which shall be in addition to any remedy which the Company, or its Shareholders may have under applicable law, equity or otherwise, including the remedies available to the Parties in terms of this Agreement; and
 - (b) be deemed to be a breach of the confidentiality provisions under this Agreement and shall survive the termination of this Agreement.

6. TERMINATION

6.1. Termination due to Event of Default:

This Agreement may be terminated, in the following events with corresponding attendant consequences, by:

- (a) Either Party (the “**Non-Defaulting Party**”), for material breach by the other Party (the “**Defaulting Party**”) of any of its material representations and warranties, covenants or other obligations under this Agreement and /or the SPA, which breach or failure, if capable of cure or remedy, has not been cured or remedied by the Defaulting Party within 30 (thirty) days of the receipt of written notice of such breach or failure from the Non-Defaulting Party.
- (b) The Non-Defaulting Party, for any wilful act or omission committed by the Defaulting Party constituting deception, fraud, wilful misconduct, theft or embezzlement.

In the event the Defaulting Party is Invictus / the Company in case of (a) or (b), ESPL BV shall be entitled to exit the Company by exercising the Put Option (Clause 4.6(c) above).

6.2. Automatic Termination

This Agreement shall terminate automatically if ESPL BV (and/or its Affiliate(s), if applicable) ceases to be a Shareholder.

6.3. Post Termination Obligations

Upon termination, any information that may have been provided by either Party to the other shall either be returned or destroyed and not disclosed or used for any purpose other than for discharging any obligation imposed by applicable law.

6.4. Survival

Upon termination, clauses 4 (*Rights, Preferences, Privileges and Restrictions attached to Shares*), 5 (*Non-Compete and Non-Solicitation*), 8 (*Confidentiality*), 9 (*Notices*), 10.1 (*Governing Law*) and 10.2 (*Dispute Resolution*) shall survive and shall continue in full force and effect.

7. FORCE MAJEURE

- 7.1.** No Party shall be liable to the other Party to the extent that the performance or delay in performance of any of its obligations under this Agreement is prevented, restricted, delayed or interfered with due to circumstances beyond the reasonable control of such Party, including but not limited to disability, fire, flood, explosion, epidemic, accident, act of God, war, terrorism, riot, strike, lockout, or act of Governmental Authority. The Party claiming an event of force majeure shall, within 7 (seven) days of happening of the force majeure event, notify the other Party in writing, and provide full particulars of the cause or event and the date of first occurrence thereof, and also keep the other Party informed of any further developments. The Party so affected shall use its best efforts to remove the cause of non-performance, and the Parties shall resume performance hereunder with utmost dispatch when such cause is removed. If the force majeure continues for a continuous period exceeding 9 (nine) months, the Parties shall assess the possible options available, failing which this Agreement will be terminated at the option of the unaffected Party.
- 7.2.** A condition of force majeure shall not relieve any Party of any obligation to pay any sum due under this Agreement prior to the event of force majeure.

8. CONFIDENTIALITY

- 8.1.** The Parties shall maintain confidentiality concerning the existence and terms of this Agreement and no public announcement or communication relating to the negotiations of the Parties or the existence, subject matter or terms of this Agreement may be made or authorized by or on behalf of a Party without the prior written approval of the other Parties, except that a Party may make such disclosures in relation to this Agreement as it may in its absolute discretion think necessary:
- (a) to its professional advisers, bankers, financial advisers and financiers / direct or indirect shareholders and upon those persons undertaking to keep confidential any information so disclosed; and
 - (b) to comply with any applicable law or the requirements of any regulatory body.
- 8.2.** The Parties may issue an announcement or press release concerning the transaction in a form agreed.

9. NOTICES

All notices, Claims, certificates, requests, demands, and other communications will be made in writing and will be deemed to have been duly given if delivered to the Party's address below:

<i>If to Company:</i>	Invictus Cable GmbH
<i>Address:</i>	7011 Siegendorf, Industriegebiet 1, Austria
<i>Attention</i>	Dr. Harald Reiszner / Dr. Michael Lentsch
<i>Email:</i>	h.reiszner@invictus.eu.com , m.reissner@invictus.eu.com

<i>If to Invictus:</i>	Invictus GmbH
<i>Address:</i>	7011 Siegendorf, Industriegebiet 1, Austria

Attention
Email:

Dr. Harald Reiszner / Dr. Michael Lentsch
h.reiszner@invictus.eu.com, m.reissner@invictus.eu.com

If to ESPL BV:
Address:
Attention
Email:

Elcomponics Holdings B.V.
Kraijenhoffstraat 137 A, 1018RG Amsterdam
Anu Sharma / Shivendra Dwivedi
anu.sharma@elcomponics.com, shivendra@elcomponics.com

10. MISCELLANEOUS

10.1. Governing Law

This Agreement and the rights and obligations arising out of or in connection with this Agreement shall be governed by and construed in accordance with English Law, subject to mandatory provisions of Austrian and Indian laws.

10.2. Dispute Resolution

Both Parties shall, in good faith, attempt to settle amicably any dispute, controversy, difference or Claim including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or in connection with or relating to this Agreement (“**Dispute**”). If the Dispute is not resolved amicably, the Dispute shall be referred to and finally resolved by binding arbitration in accordance with the ICC Rules of the International Chamber of Commerce. The seat of arbitration shall be Paris and the number of arbitrators shall be 1 (one). The language of arbitration shall be English.

10.3. Implementation of this Agreement

Each Party shall at all times in good faith carry out the actions, sign and submit the documents (including in notarized form or in the form of a notarial deed, if applicable) and take all measures that might be necessary or useful for the purpose of the implementation and performance of this Agreement, in each case without undue delay and so as to give full effect to and preserve the rights and obligations of the respective other Parties (or any of them) under this Agreement. If the provisions of this Agreement conflict with the articles of association or other constitutional documents of the Company, the provisions of this Agreement shall prevail as between the Parties.

10.4. Severability

If any term or provision of this Agreement is declared illegal, invalid, void or unenforceable by any judicial or administrative authority, then: (i) such provision shall be eliminated to the minimum extent necessary, and (ii) such provision shall be reformed and rewritten so as to most closely reflect the intention of the Parties, such that this Agreement shall otherwise remain in full force and effect and enforceable.

10.5. Entire Agreement and Amendments

This Agreement shall constitute the entire understanding between the Parties with respect to the subject matter hereof and cannot be altered or modified except by an agreement or amendment in writing, signed by the Parties.

10.6. Waiver

The failure at any time of any Party to demand strict performance of the other Party of any of the terms, covenants or conditions set forth in this Agreement will not be construed as a continuing waiver or relinquishment thereof, and any Party may, at any time, demand strict and complete performance of any other Party of such terms, covenants, and conditions.

10.7. Rights Cumulative

Except as expressly set forth herein, all rights and remedies conferred upon or reserved by the Parties in this Agreement shall be cumulative and concurrent and shall be in addition to all other rights and remedies available to such Parties, including, without limitation, requests for temporary and/or permanent injunctive relief. Such rights and remedies are not intended to be exclusive of any other rights or remedies and the exercise by any Party of any right or remedy herein provided shall be without prejudice to the exercise of any other right or remedy by such Party provided herein or available at law or in equity.

10.8. Assignment

This Agreement is binding upon and inures to the benefit of the Parties and their respective successors and permitted assigns. Neither this Agreement nor any of the rights, duties or obligations under this Agreement are assignable or transferable by a Party without the prior written consent of the other Parties.

10.9. Counterparts

This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute 1 (one) agreement binding on all Parties hereto, notwithstanding that all of the Parties hereto are not signatories to the same counterpart. Each of the Parties agrees that an electronic signature evidencing a Party's execution of this Agreement shall be effective as an original signature and may be used in lieu of the original for any purpose.

SCHEDULE 1
DEFINITIONS AND INTERPRETATION

1. Definitions:

“Acceptance Notice” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Acceptance Notice Period” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Affiliate” in relation to any Person means (a) a Relative of that Person or a Relative of the shareholder of that Person or a Person Controlling, Controlled or under common Control of such Person; or (b) a Person that is not an individual / natural person, who either, directly or indirectly, through one or more intermediate Persons and whether alone or in combination with one or more other Persons, Controlling, Controlled by or is under common Control of such Person or their Relatives;

“Agreement” means this shareholders’ agreement, together with the schedules attached hereto and shall include any and all of its amendments, restatements or replacements;

“Articles” means the articles of association of the Company (as amended from time to time);

“Assets” means assets or properties of every kind, nature, character, and description (whether movable, immovable, tangible, intangible, absolute, accrued, fixed or otherwise) as now operated, hired, rented, owned, used or leased by a Person, including cash, cash equivalents, securities, accounts and notes receivable, real estate, plant and machinery, equipment, software, trademarks, brands, patents, copyrights, trade secrets, other intellectual property, raw materials, inventory, furniture, fixtures and insurance, and includes any contractual rights;

“Business” means manufacturing of flat cables in Austria with sales and distribution presence in the markets of United States of America, European Union and China;

“Claim” includes any allegation, debt, cause of action, liability, claim, proceeding, suit or demand of any nature howsoever arising and whether present or future, fixed or unascertained, actual or contingent, whether at Law, in equity, under statute or otherwise;

“Completion Date” means the date of completion of the sale and purchase of the Sale Share under the SPA;

“Competing Business” means any business activity which is similar to the Business or any other business of the Company as carried out by it or proposed at the board level to be carried out by it, in each case, at the time of reckoning, and such other business as may be added by the board within the scope of competing business for the purposes of this definition from time to time;

“Control” means, with respect to any Person, the ability to direct the management or policies of such Person, directly or indirectly, whether through the ownership of shares or other securities, by contract or otherwise, provided that in all events: (i) the direct or indirect ownership of or the power to direct the vote of 50% (fifty per cent.) or more of the voting

share capital of a Person or the power to control the composition of the board of directors of a Person shall be deemed to constitute Control of that Person; and (ii) in the case of an individual, his immediate family, or the trustees of any trust of which he or his immediate family is a beneficiary or any company in which he and his immediate family together (directly or indirectly) have an interest of fifty percent (50%) or more or any Person who is accustomed to act according to the instructions of such individual, shall be deemed to constitute Control of such individual (the expressions “**Controlling**” and “**Controlled**” shall have the corresponding meanings);

“**Deed of Adherence**” means the deed of adherence in the form as set out in **Schedule 2** (*Deed of Adherence*), to be executed in the form of a notarial deed;

“**Defaulting Party**” is defined in Clause 6.1 (*Termination due to Event of Default*);

“**Drag Along Right**” has the meaning given in paragraph (c) of Clause 4.7 (*Share Transfer Rights and Restrictions*)

“**Drag Along Shares**” have the meaning given in paragraph (c) of Clause 4.7 (*Share Transfer Rights and Restrictions*)

“**Drag Notice**” has the meaning given in paragraph (c) of Clause 4.7 (*Share Transfer Rights and Restrictions*)

“**Dispute**” is defined in Clause 10.2 (*Dispute Resolution*);

“**Exit Right**” has the meaning set out in paragraph (c) of Clause 4.6 (*Exit Right*);

“**Exit Notice**” has the meaning set out in paragraph (c) of Clause 4.6 (*Exit Right*);

“**Governmental Authority**” means: (a) any national, state, city, municipal, or local government, governmental authority, or political subdivision thereof; (b) any agency or instrumentality of any of the authorities referred to in (a) above; (c) any non-governmental regulatory or administrative authority, body or other organization to the extent that the rules, regulations, standards, requirements, procedures or Orders of such authority, body or other organization have the force of Law; or (d) any competent court, judicial or quasi-judicial authority;

“**Insolvency Event**” is defined in paragraph (d) of Clause 6.2 (*Termination due to Event of Default*).

“**Lock-in Period**” has the meaning given in paragraph (a) of Clause 4.6.

“**Loss** means all damage, loss, cost, and expense (including legal costs and expenses of whatsoever nature or description);

“**Non-Defaulting Party**” is defined in Clause 6.1 (*Termination due to Event of Default*);

“**Offered Drag Shares**” has the meaning given in paragraph (c) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Offered Shares” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Offered Tag Shares” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Offeree” has the meaning given in Clause 4.5 (*Anti-Dilution Rights*).

“Offer Notice” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Offer Price” has the meaning given paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Ownership Interest” means ownership in the Share Capital expressed as a percentage;

“Permitted Transfers” has the meaning given in paragraph (b) of Clause 4.6.

“Person” means any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, government or any agency or political subdivision thereof or any other entity that may be treated as a Person under applicable law;

“Proposed Transferee” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Relative” means in relation to an individual, any person who at any relevant time is connected with that individual within the meaning of section 32 para 1 of the Austrian Insolvency Code (*Insolvenzordnung*);

“Reserved Matters” has the meaning given in clause 4.2;

“Restated Articles” mean the restated Articles of the Company in a form agreed by the Parties;

“Right of First Refusal” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Sale Share” means a Share corresponding to a fully paid-up capital contribution (*Stammeinlage*) of EUR 9,100 representing 26% Ownership Interest;

“Selling Shareholder” has the meaning given in paragraph (a) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Share Capital” means the total issued and paid-up share capital of the Company on the Completion Date assuming that all outstanding convertible securities, stock options, warrants (whether or not by their terms then currently convertible, exercisable or exchangeable) have been so converted, exercised or exchanged;

“Share” means a share quota (*Geschäftsanteil*) in the Company;

“Shareholder(s)” means any Person who holds any Shares;

“SPA” means the share purchase deed dated 7 June 2022 entered into by Invictus and ESPL BV for the sale and purchase of the Sale Share from the former to the latter;

“Tag Along Notice” has the meaning given in paragraph (b) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Tag Along Period” has the meaning given in paragraph (b) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Tag Along Right” has the meaning given in paragraph (b) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

“Tag Along Shares” has the meaning given in paragraph (b) of Clause 4.7 (*Share Transfer Rights and Restrictions*); and

“Tag Offer Notice” has the meaning given in paragraph (b) of Clause 4.7 (*Share Transfer Rights and Restrictions*);

2. Interpretation:

In this Agreement the following rules of interpretation apply unless the contrary intention appears:

- (a) any reference to any legislation or law or any provision thereof shall include references to any such law as it may, after the date hereof, from time to time, be amended, supplemented or re-enacted, and any reference to a statutory provision shall include any subordinate legislation made from time to time under that provision;
- (a) the *Background* to this Agreement forms an integral part and the basis of this Agreement, and the Agreement shall be construed in light of and to give regard to the *Background*;
- (b) references to this Agreement or any other document will be construed as references to this Agreement or that other document as amended, varied, novated, supplemented or replaced from time to time;
- (c) reference to:
 - (i) a document includes all amendments or supplements to that document; and
 - (ii) Party includes its successors and permitted assigns;

SCHEDULE 2
DEED OF ADHERENCE

[Note: This Deed of Adherence may be customised appropriately]

THIS DEED OF ADHERENCE (this “**Deed**”) is entered into at [●] this [●] day of [●], 20[●]

BY:

[●] *name, address and description of the new shareholder(s) purchasing shares in the Company*> (hereinafter referred to as the “**New Shareholder**”, which expression shall be deemed to include, unless repugnant to the meaning or context thereof, his / her / its executors, successors and permitted assigns);

WHEREAS:

- A. Invictus Cable GmbH (“**Company**”) and its shareholders are party to a Shareholders’ Agreement dated [●], 2022 (hereinafter referred to as the “**Agreement**” which shall include any amendment, replacement or substitution of the said agreement), a copy of which is annexed hereto as **Annexure 1**;
- B. Each of [●] became a party to the Agreement pursuant to a deed of adherence dated [●] entered into among [●] and each of the current parties to the Agreement is listed in **Annexure 2** hereto; *<Delete, if inapplicable>*
- C. Pursuant to a *[insert details of the agreement / arrangement under which the New Shareholder is subscribing / acquiring shares]* (the “**New Agreement**”), the New Shareholder proposes to acquire *[insert the number and type of shares]* (the “**Securities**”) of the Company, *[from [insert name] (the “Selling Shareholder”)]*;
- D. As contemplated under the Agreement, prior to the acquisition of the shares by the New Shareholder, the New Shareholder is required to enter into this Deed.
- E. This Deed is supplemental to the Agreement.

NOW THIS DEED WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. Definitions and Interpretation

- 1.1. Capitalized terms used but not defined in this Deed shall, unless the context otherwise requires, have the respective meaning given to the term in the Agreement.

2. Terms of Adherence

- 2.1. The New Shareholder hereby acknowledges that it has received, read and understood the Agreement and the Restated Articles.
- 2.2. The New Shareholder hereby agrees, undertakes and covenants with the Company and each other Party to the Agreement that with effect from the date on which the New Shareholder is registered as a member of the Company, it shall adhere to and be bound by and act in accordance with:

- 2.2.1. the Restated Articles; and
- 2.2.2. the provisions of the Agreement which were applicable to the Selling Shareholder and are capable of being applied to the New Shareholder as if the New Shareholder were a Party to the Agreement [in place of / in addition to] *<Delete / retain depending on whether all or some of the Selling Shareholder's securities are being sold, and the applicable provisions of the Agreement.>* the Selling Shareholder. *<Delete/ retain depending upon whether it is a primary issuance or secondary purchase>*
- 2.3. The New Shareholder agrees and acknowledges that the rights and obligations which accrue to the New Shareholder pursuant to any acquisition of the Securities shall not be in excess of the rights which the Selling Shareholder would have had in relation to such Securities. *< Delete / retain depending upon whether it is a primary issuance or secondary purchase>*
- 2.4. The New Shareholder hereby covenants that it shall do nothing that derogates from the provisions of the Agreement and the Restated Articles.
- 2.5. The New Shareholder further confirms and recognises that the Company shall not be bound to give effect to any act or voting rights exercised by the New Shareholder which are not in accordance with the Agreement.
- 2.6. This Deed is made for the benefit of (a) the original Parties to the Agreement and (b) any other Person or Persons who after the date of the Agreement (and whether or not prior to or after the date of this Deed) adhere to the Agreement.

3. **Representations and Warranties**

- 3.1. The New Shareholder hereby represents and warrants to the Company and each other Party to the Agreement that:
 - 3.1.1. It is duly incorporated and validly existing as a corporation under the laws of its place of incorporation and has full power, capacity and authority to execute, deliver and perform this Deed and has taken all necessary actions (corporate, statutory or otherwise) to execute and authorize the execution, delivery and performance of this Deed; *<To be modified appropriately if the New Shareholder is an individual>*
 - 3.1.2. This Deed, upon execution and delivery by it, shall constitute a legal and binding obligation on it, enforceable against it in accordance with its terms;
 - 3.1.3. The discharge by it of the obligations and liabilities under the Agreement and the performance by it of the acts and transactions contemplated hereby do not and will not (whether with or without the giving of notice or lapse of time or both), violate, conflict with, require any consent under or result in a breach of or default under:
 - i. any law to which it is subject; or
 - ii. any term, condition, covenant, undertaking, agreement or other instrument to which it is a party or by which it is bound;
 - 3.1.4. To the best of its information and knowledge, there are no legal, quasi-legal, administrative, arbitration, mediation, conciliation or other proceedings, claims, actions, governmental investigations, orders, judgments or decrees of any nature made, existing, threatened, anticipated or pending against it which may

prejudicially affect its holding of the shares or the due performance or enforceability of the Agreement or this Deed or any obligation, act, omission or transaction contemplated thereunder or hereunder.

4. **Incorporation of Provisions of the Agreement**

- 4.1. The provisions of Clause 1 (*Definitions and Interpretation*), Clause 9 (*Notices*), Clause 10.1 (*Governing Law*), Clause 10.2 (*Dispute Resolution*) and Clause 10.8 (*Assignment*), of the Agreement shall apply *mutatis mutandis* to this Deed and shall be deemed to be incorporated herein by reference as if the same were reproduced herein with references therein to this Agreement being references to this Deed.

5. **Notices to the New Shareholder**

- 5.1. The address of the New Shareholder for the purpose of receiving the notices under the Agreement is as under:

New Shareholder

Kind Attention : [●] <Insert details>

Address : [●] <Insert details>

Email address : [●] <Insert details>

6. ***[This clause is only to be included where the transfer to the New Shareholder is permitted only due to it /him / her being an Affiliate of the Transferor]*** The New Shareholder and the transferor shareholder (“**Transferor**”) recognize that the transfer of Securities has been permitted on the sole ground that the New Shareholder is an Affiliate of the Transferor. The New Shareholder and the Transferor covenant that in the event that the New Shareholder ceases to be an Affiliate of the Transferor, prior to such cessation, the New Shareholder shall transfer to the Transferor and the Transferor shall acquire from the New Shareholder, all shares in the Company as may be held by the New Shareholder. Pending such acquisition, all beneficial interest in such shares shall vest in the Transferor with immediate effect, and the Transferor shall, and the New Shareholder shall not, be entitled to exercise all rights attached to or otherwise arising out of the holding of the shares.

IN WITNESS WHEREOF, this Deed has been executed on the day and year first above written.

SIGNED by the within named “**New Shareholder**”

[Insert the name of the New Shareholder] through
its authorized signatory

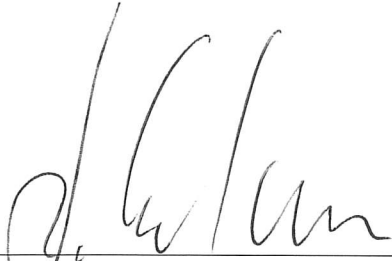
Mr./Ms./Mx. [●]

Working Notes:

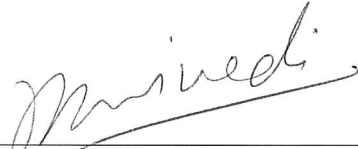
- i. *Content in square brackets (i.e., “[]”) to be struck off, in full or in part, in case the same is inapplicable.*
- ii. *Content in angle brackets (i.e., “< >”) are for guidance.*

Wien, am 24. MRZ. 2023

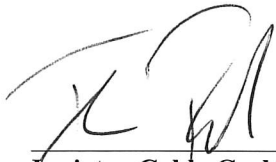
SIGNATORIES



Invictus GmbH
Name: Dr Harald Reißner
Position: Managing Director



Elcomponics Holdings B.V.
Name: Shivendra Narayan Dwivedi
Position: Director



Invictus Cable GmbH
Name: Thomas Reißner
Position: Managing Director



Invictus Cable GmbH
Name: Bernd Reiter
Position: Managing Director

Gefertigt gemäß § 54 NO



Öffentlicher Notar



1907 159 21 100. 100M

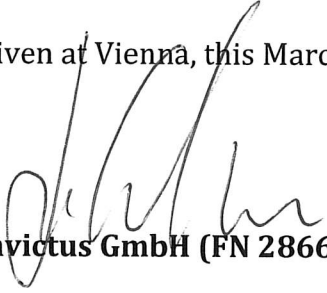
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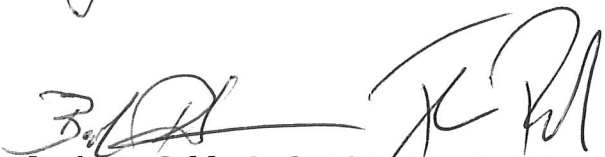


(100 100 100 100 100 100)

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Given at Vienna, this March 24th 2023 (March twenty-fourth twothousandtwenty-three)


Invictus GmbH (FN 286666v)


Invictus Cable GmbH (FN 515573 x)


Elcomponies Holdings B.V.




Öffentlicher Notar



